

Udit Narayan v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 5 May 2025 · Application u/s 528 BNSS No. 13227 of 2025 · **s.135 trial stayed on Rs.50,000 deposit; connection directed; listed after six weeks.**

HEADNOTE

On a s.528 BNSS application to quash an s.135 Electricity Act trial, after a recovery citation had already been quashed for non-compliance with the U.P. Electricity Supply Code, 2005 and a fresh assessment (over Rs.1 lakh plus compounding fee) had been raised, the Court directed deposit of Rs.50,000 within three weeks. On deposit, the s.135 proceedings would remain stayed till the next date and the department would grant the pending connection. Quashing was not decided; listed after six weeks.

FACTUAL SUMMARY

Udit Narayan sought quashing of Special Sessions Trial No.709 of 2023 and the chargesheet arising from Case Crime No.3304 of 2020 under s.135 of the Electricity Act, 2003, Jalaun. He had applied and paid for a connection that was never given. A recovery citation was quashed in Writ C No.13982 of 2023 with a direction to proceed afresh under the U.P. Electricity Supply Code, 2005. The department said it had withdrawn that citation as contrary to the Code and raised a fresh assessment exceeding Rs.1 lakh plus compounding fee.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

interim stay of s.135 trial and direction to grant connection

HOLDING

Where a prior recovery citation in a s.135 matter had been quashed for ignoring the U.P. Electricity Supply Code, 2005 and a fresh Code-compliant assessment (over Rs.1 lakh plus compounding fee) had been raised, the applicant was directed to deposit Rs.50,000 toward that assessment within three weeks. On such deposit the s.135 trial would remain stayed till the next date and the department would provide the electricity connection already applied for. The quashing application was not disposed of. ¶ 5

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy On a s.528 BNSS application to quash an s.135 Electricity Act trial, after a recovery citation had already been quashed for non-compliance with the U.P.. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE S.135 TRIAL AND CHARGESHEET SHOULD BE QUASHED

Only an interim stay on deposit was granted; matter listed after six weeks for exchange of pleadings. ¶ 5-6